

Amendment No. 1 to HB0132

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 396

House Bill No. 132*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 58-2-107, is amended by adding the following new subsections:

(o) Notwithstanding this section to the contrary, the governor shall not issue a proclamation or executive order pursuant to this section, or suspend a state law or regulation, that would violate the rights of the citizens of this state under the Declaration of Rights in Article I of the Constitution of Tennessee or the Bill of Rights in the First through Tenth Amendments to the United States Constitution.

(p) If the governor issues or extends an executive order or proclamation of a state of emergency under this section, then the general assembly may terminate such state of emergency by joint resolution of both houses.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to states of emergency declared by executive order or proclaimed by the governor on or after such date.